

Court No. - 21

Case :- WRIT - C No. - 8557 of 2023

Petitioner :- Asha Ram

Respondent :- Up Power Corporation Ltd. And 2 Others

Counsel for Petitioner :- Azim Ahmad Kazmi

Counsel for Respondent :- Baleshwar Chaturvedi, Krishna Agarawal

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Prashant Kumar, J.

The petitioner has challenged the assessment notices dated 8.2.2023 and 31.12.2022 issued by respondent No.2 in a case of theft of electricity.

Sri Mata Prasad holding brief of Sri Baleshwar Chaturvedi, counsel for respondents 2 and 3-Electricity department, on instructions states that the department has withdrawn the impugned notices and has issued a fresh notice for providing hearing to the petitioner and that a fresh order will be passed.

Having regard to the aforesaid statement, we dispose of the petition with liberty to the respondent-Electricity department to pass fresh order, after following the procedure prescribed under the U.P. Electricity Supply Code, 2005.

Order Date :- 20.3.2023

skv

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)